

Tentative Rulings for August 20, 2026 Department M301

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVSW2404655	GREER'S CONTRACTING AND CONCRETE, INC. VS CAREY	DEMURRER ON CROSS-COMPLAINT

Tentative Ruling: Demurrer overruled on the Sixth and Eighth Causes of Action. Demurrer is Sustained to the Ninth Cause of Action without leave to amend. Cross Defendant to respond within 20 days.

Meet and Confer - CCP § 430.41(a) provides that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The demurring party must file and serve with the demurrer a declaration stating the means by which the demurring party met and conferred, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (CCP § 430.41(a)(3).)

Counsel for GCC asserts that beginning February 2026, he attempted to meet and confer with Careys’ counsel on at least four occasions via email and telephone voice messages. (Decl. fo Diefenbach, ¶ 3 and 4.) The emails and phone calls were not returned. (Id at ¶ 5.) Because GCC attempted to meet and confer by telephone, this satisfies the meet and confer requirement.

Standard - A party may object by demurrer to a complaint on grounds that the pleading does not state facts sufficient to constitute a cause of action. (Cal. Code Civ. Pro. §430.10(e).) For the purposes of a demurrer, the allegations in the complaint must be accepted as true. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) “In short, the ruling on a demurrer determines a legal issue on the basis of assumed facts, i.e., all those material, issuable facts properly pleaded in the complaint, regardless of whether they ultimately prove to be true.” (*State of California ex rel. Bowen v. Bank of America Corp.* (2005) 126 Cal. App. 4th 225, 240.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. Williams S. Hart Union High School Dist.* (2012) 53 Cal. 4th 861.)

Sixth Cause of Action for Breach of Implied Covenants of Good Faith and Fair Dealing - “The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party’s right to receive the benefits of the agreement actually made.” (*Guz v. Bechtel National, Inc.* (2000) 24 Cal. 4th 317, 349-350.) The implication must arise from the language of the contract or be indispensable to effectual the intention of the parties. (*Third Story Music, Inc. v. Waits* (1995) 41 Cal. App. 4th 798, 804.) “A party violates the covenant if it subjectively lacks belief in the validity of its act or if its conduct is objectively unreasonable.” (*Moore v. Wells Fargo Bank, N.A.* (2019) 39 Cal. App. 5th 280, 291.)

GCC argues that the sixth cause of action is barred by the economic loss rule. An omission to perform a contract obligation is never a tort, unless that omission is also an omission of a legal duty.” (*Erllich v. Menezes* (1999) 21 Cal. 4th 543, 551.) The

economic loss rule bars “a plaintiff’s tort recovery of economic damages unless such damages are accompanied by some form of physical harm (i.e. personal injury or property damage.)” (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 777.) However, the rule does not apply where the conduct amounting to a breach of contract also violates a duty independent of the contract constituting a tort. (*Erlich, supra*, 21 Cal. 4th at 551.) A tortious breach of contract may be found when the breach is accompanied by a traditional common law tort, such as fraud or conversion. (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal. 4th 979, 990.) In such cases, the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm. (*Id.*)

As stated, the implied covenant creates a duty to act in good faith and deal fairly in the performance of contract, which may be independent from the breach of the contract. Thus, breach of covenant claims are not barred by the economic loss rule. Here, the Careys allege that GCC breached this duty by failing to complete work in a workmanlike manner, employing unlicensed laborers, covering up construction defects, charging for work and materials that were already included in the contract, plans and specifications and representing the Careys did not pay for work. (XComp, ¶71.) This is sufficient to state a cause of action for breach of implied covenants. GCC argues that the Careys may only recover contract damages. “The failure to deal fairly or in good faith gives rise to an action for damages.” (*Moore, supra*, 39 Cal. App. 5th at 291.) Because the breach of the implied covenants is a contract concept, such claims generally lead to the imposition of contract damages rather than tort damages. (*Foley v. Interactive Data Corp.* (1988) 47 Cal. 3d 654, 684.) However, the amount or type of damages is not a proper subject for demurrer because “a demurrer must dispose of an entire cause of action to be sustained.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) Accordingly, the Demurrer is overruled.

Eighth Cause of Action for Violation of Penal Code §496 - “Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained, shall be punished by imprisonment in a county jail for not more than one year, or imprisonment.” (Pen. Code §496(a).) Any person who has been injured by a violation of subdivision (a) may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney’s fees. (Pen. Code §496(c).) “While section 496(a) covers a spectrum of impermissible activity relating to stolen property, the elements required to show a violation of section 496(a) are simply that (i) property was stolen or obtained in a manner constituting theft, (ii) the defendant knew the property was so stolen or obtained, and (iii) the defendant received or had possession of the stolen property.” (*Switzer v. Wood* (2019) 35 Cal. App. 5th 116, 126.) An essential element of a section 496 violation is the defendant’s knowledge that the property was stolen. (*Lacagnina v. Comprehend Systems, Inc.* (2018) 25 Cal. App. 5th 955, 971.)

Section 496 applies to theft by false pretense, which involves knowingly and designedly defrauding a person of money, labor or property by false or fraudulent representations or pretense. (*Bell v. Feibush* (2013) 212 Cal. App. 4th 1041, 1048.) However, “to prove theft, a plaintiff must establish criminal intent of the party of the defendant beyond mere

proof of nonperformance or actual falsity,” which “prevents ordinary commercial defaults from being transformed into a theft.” (*Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal. 5th 333, 361-362.) Thus, not all disputes alleging that a defendant obtained money through fraud will amount to a theft under Penal Code § 496. (Id at 361.)

The Careys allege that Cross-Defendants, including GCC, knowingly and willfully conspired to breach their contractual duties by fraudulently diverting cash distributions for the payment of unlicensed work in violation of CSL and construction statutes. (XComp, ¶ 93.) The claim that the fraud was the result of careful planning and deliberation reflecting criminal intent. (Ibid.) While these allegations seem specious, they must be accepted as true for the purpose of the demurrer. Arguably, the Careys have stated sufficient facts to constitute a cause of action. The demurrer is overruled.

Ninth Cause of Action for Declaratory Relief - Pursuant to CCP §1060, any person under a written instrument who desires a declaration of his or her rights or duties with respect to another, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an action or cross-complaint in the superior court for a declaration of his or her rights or duties. The purpose of declaratory relief is to eliminate uncertainties and controversies that may result in future litigation. (*Marina Development Co. v. County of Los Angeles* (1984) 155 Cal.App.3d 435, 443.) To demonstrate entitlement to declaratory relief, a plaintiff must show that the action presents “two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.) An actual controversy “encompasses a probable future controversy relating to the legal rights and duties of the parties. [Citation]. It does not embrace controversies that are conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court.” (Ibid; see also *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79.)

Where there is an accrued cause of action for breach of contract, declaratory relief may be denied. (*Baldwin v. Marina City Properties, Inc.* (1978) 79 Cal. App. 3d 393, 407.) “The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues.” (*Hood v. Superior Court* (1995) 33 Cal. App. 4th 319, 324.)

The Careys assert that an actual controversy exists between Cross-Complainants and Cross-Defendants concerning their respective rights and duties in that they maintain that representations made by GCC were false and that GCC hired unlicensed workers who were not covered under GCC’s CSLB License, in violation of Bus & Prof. Code sections 7031, 7125.2, 7159, 7160 and 7161. (XComp., ¶102.) The Careys seek a judicial declaration in order to ascertain their rights and duties under the written Construction Contract, liability for their injuries responsibility for the cost to repair their construction related damages and damages for fraud and misrepresentation and finally liability under the Contractor's License Bond issued by Cross-Defendant Hudson. (XComp., ¶105.) Thus, it appears that the ninth cause of action is duplicative of the substantive causes of action. Moreover, declaratory relief is not appropriate to remedy past wrongs. (*California Insurance Guarantee Assn. v. Superior Court* (1991) 231

Cal.App. 3d 1617.) “If there is a controversy which calls for a declaration of rights, it is no objection that past wrongs are also to be redressed; but there is no basis for declaratory relief where only past wrongs are involved.” (*Baldwin v. Marina City Properties, Inc.* (1978) 79 Cal. App. 3d 393, 407.) Here, it appears that the allegations regarding misrepresentations and the use of unlicensed laborers are based entirely on past wrongs. The demurrer is sustained without leave to amend.

2.

CASE #	CASE NAME	HEARING NAME
CVME2608128	KING-STEELE VS COUNTY OF RIVERSIDE	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2507574	DANKO RESTAURANT GROUP, INC VS PATTAH	MOTION TO COMPEL: ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS

Tentative Ruling: Motion is continued until November 25, 2026 at 8:30 am M301. Both parties are required to submit a declaration at least 10 days before the next hearing detailing compliance with the meet and confer requirements and addressing the Court’s concerns with the responses.

Pursuant to CCP §2031.010, a party may demand that any other party produce and inspect a document that is in the possession of another party. The demanding party must designate documents by specifically describing individual items or reasonably particularizing categories of documents. (CCP §2031.030(c)(1).) The responding party must respond to each request by either a statement that the party will comply, a representation that the party is unable to comply or an objection. (CCP §2031.210(a)(1)-(3).) A demanding party may move for an order compelling further responses to a demand for inspection if the party determines that the statement of compliance or representation of inability to comply is incomplete or if an objection is without merit. (CCP §2031.310(a)(1)-(3).) A moving party must establish good cause justifying discovery. (CCP §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and facts justifying discovery. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Once good cause is established, the responding party has the burden to justify any objections. (*Ibid.*)

Meet and Confer - A motion to compel a further response to an inspection demand or interrogatory must be accompanied by a declaration stating facts showing a “reasonable and good faith attempt” to resolve informally the issues presented by the motion before filing the motion. (CCP §§ 2031.310(b)(2); 2030.300(b).) “This rule is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435.) The level of effort necessary to satisfy the requirement varies depending on the circumstances of the case, but a serious effort is required. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.) Whether a “reasonable and good faith attempt” was made requires an “evaluation of whether, from the perspective

of a reasonable person in the position of the discovering party, additional effort appears likely to bear fruit.” (*Clement v. Alegria* (2009) 177 Cal.App.4th 1277, 1294.) Importantly, the meet and confer declaration must state facts showing that the parties made “a reasonable and good faith attempt at an informal resolution of *each issue presented by the motion*.” (CCP § 2016.040, emphasis added.)

Here, DRG’s counsel sent one meet and confer letter on July 21, 2026, the day before the present Motion was filed. This was clearly done in an effort to meet the deadline to file the Motion to Compel under CCP §2031.310(c), which provides that unless notice of a motion to compel further responses is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand. The supplemental responses were electronically served on June 5, 2026, making the motion deadline July 22, 2026. It appears that DRG waited until the last minute under the belief that the supplemental responses could be addressed by the prior Motion filed before they were served, despite the fact that the supplemental responses were not addressed by that Motion or the accompanying separate statement.

Although there appears to be some animosity between counsel, the statute requires that the parties attempt to meet and confer. Since there was no meet and confer regarding the supplemental responses, the hearing will be continued to allow the parties to comply with the statutory requirements. It should be noted that the supplemental responses are a complete mess. Rather than complete, straightforward responses, RBI includes improper legal arguments and comments regarding DRG and counsel as “objections”. These comments render the responses confusing and non-compliant. RBI also improperly refuses to produce documents that have been produced by other parties. Furthermore, because the supplemental responses are difficult to understand, it is not clear whether the responses are responsive to the RFPs demanding communications with various individuals. These issues should be addressed during the meet and confer process.

4.

CASE #	CASE NAME	HEARING NAME
CVME2401065	DECLUE VS COSTCO WHOLESALE CORPORATION	DEMURRER / MOTION TO STRIKE COMPLAINT

Tentative Ruling: Request for Judicial Notice Granted. Motion to Strike is denied without prejudice. Demurrer is overruled. Defendant to file response within 20 days.

Defendant Fuscoe Engineering, Inc demurs to the complaint arguing it fails to state a cause of action because the applicable two-year statute of limitations expired on September 1, 2024, before Fuscoe was ever named in this action, and Plaintiff cannot invoke Code of Civil Procedure¹ section 474 to toll the limitations period because Plaintiff’s own prior filings conclusively establish that Plaintiff was not genuinely ignorant of facts giving rise to a cause of action against Fuscoe at the time the original Complaint was filed. (§ 430.10(e).) The companion motion to strike, brought under §§ 435 and

¹ All further statutory references are to Code of Civil Procedure unless specified.

436, targets the Second Doe Amendment on the grounds that it “was not filed in conformity with [...] section 474; Motion to Strike” and that “Plaintiff’s subsequent attempt to re-name Fuscoe as DOE 5 after previously naming and dismissing Fuscoe constitutes an improper use of the fictitious-name procedure.” Fuscoe also argues the second attempt is an improper sham pleading and false Doe amendment that must be stricken. Fuscoe also submits a Request for Judicial Notice of various related filings by Plaintiff.

Plaintiff opposes the demurrer on the ground that section 474 turns on actual ignorance of liability-producing facts-not ignorance of a corporate name, general project involvement, or a suspicion that liability might exist. Plaintiff argues Costco’s discovery identified Fuscoe only as a design participant while representing that “the parking lot was built according to its exact design specifications and approved at design and final inspection,” and the March 2025 Certificate of Merit generically identified Fuscoe only as “the engineer of the project.” Plaintiff contends the materially different, liability-producing facts, Fuscoe’s post-substantial-completion site walk, drainage grade certification, as-built signature, and admission that a required cover “wasn’t installed” and Fuscoe didn’t think we paid attention to it first emerged from the March 11, 2026 PMK deposition. (*Parker v. Robert E. McKee, Inc.* (1992) 3 Cal.App.4th 512, 516–518.) The opposition to the motion to strike advances the same theory, arguing that Fuscoe’s motion repackages the same statute-of-limitations theory advanced in its demurrer. Plaintiff further argues the sham-pleading doctrine does not apply because there is no contradictory amended allegation and the second certificate simply reflects later PMK testimony disclosed a different factual basis, prompting renewed professional consultation. Any delay theory fails because Fuscoe identifies no loss of evidence, unavailable witness, inability to conduct discovery, or other prejudice caused by that interval. Both oppositions ask the Court to overrule the demurrer and deny the motion to strike, or in the alternative to grant leave to amend.

In reply, Fuscoe argues Plaintiff’s oppositions do not demonstrate newly discovered ignorance and do not dispute any judicially noticeable fact. It otherwise re-argues the points presented in their moving papers.

Meet and Confer - Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via phone, videoconferencing or in person before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) Here, counsel declares she spoke with Plaintiff’s counsel regarding Fuscoe’s “contemplated responsive pleading,” the next day sent an email outlining the issues and received a response from Plaintiff’s counsel that he would not be dismissing Fuscoe. (Salama Decl., ¶¶ 3-5, Exh. A.) This is minimally sufficient.

Request for Judicial Notice - Fuscoe requests the Court take judicial notice of five records filed in this action: 1) Amendment to Complaint filed February 20, 2025, substituting Fuscoe for DOE 2 in this action; 2) Plaintiff’s Certificate of Merit for Fuscoe filed March 28, 2025; 3) Request for Dismissal filed May 8, 2025, voluntarily dismissing

Fusco without prejudice; 4) Amendment to Complaint filed May 13, 2026, substituting Fusco for DOE 5 ; and 5) Plaintiff's Certificate of Merit for Fusco filed May 13, 2026.

These documents may be judicially noticed pursuant to Evid. Code § 452(d), which permits judicial notice of court records. While a court may take judicial notice of court records, judicial notice reaches what those documents say, including inconsistent statements of a party, but does not resolve disputed questions of fact or establish conclusive proof of a party's subjective knowledge of contested liability-producing facts. (*Del E. Webb Corp. v. Structural Materials Co.*, (1981) 123 Cal.App.3d 593, 604-605.)

Standard - A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; C.C.P., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts--that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Section 474

This section provides:

When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly; provided, that no default or default judgment shall be entered against a defendant so designated, unless it appears that the copy of the summons or other process, or, if there be no summons or process, the copy of the first pleading or notice served upon such defendant bore on the face thereof a notice stating in substance: "To the person served: You are hereby served in the within action (or proceedings) as (or on behalf of) the person sued under the fictitious name of (designating it)." The certificate or affidavit of service must state the fictitious name under which such defendant was served and the fact that notice of identity was given by endorsement upon the document served as required by this section. The foregoing requirements for entry of a default or default judgment shall be applicable only as to fictitious names designated pursuant to this section and not in the event the plaintiff has sued the defendant by an erroneous name and shall not be applicable to entry of a default or default judgment based upon service,

in the manner otherwise provided by law, of an amended pleading, process or notice designating defendant by his true name.

The phrase “ignorant of the name of a defendant” in section 474 is broadly interpreted to mean not only ignorant of the defendant’s identity, but also ignorant of the facts giving rise to a cause of action against that defendant. (*San Diego Navy Broadway Complex Coalition* (2019) 40 Cal.App.5th 563, 579.) Therefore, the fact that Plaintiff was aware of Fuscoe’s identity but not the basis for her claims against it does not alone bar Plaintiff’s second Doe amendment naming Fuscoe as Doe 5.

Moreover, the purpose of section 474 is to allow a plaintiff to bring an action before it is barred by the applicable statute(s) of limitations. (*Smeltzley v. Nicholson Mfg. Co.* (1977) 18 Cal.3d 932, 939-941; *Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 599; *Hahn v. New York Air Brake LLC* (2022) 77 Cal.App.5th 895, 897-898.) Section 474 is to be liberally construed to allow a plaintiff to avoid the bar of the statute of limitations when the plaintiff is ignorant of the identity of the defendant. (*Olden v. Hatchell* (1984) 154 Cal.App.3d 1032, 1035.)

Here, there is a potential statute of limitations issue as the applicable 2-year statute of limitations on Plaintiff’s claims against Fuscoe had run by the second time Plaintiff named Fuscoe as a Doe defendant (Doe 5). (See § 335.1.) The incident occurred on September 1, 2022, and Plaintiff filed the second Doe amendment on May 13, 2026. Fuscoe contends that Plaintiff’s March 28, 2025, Certificate of Merit, which identified Fuscoe as the engineer of the project and certified, after consultation with a licensed professional engineer, that a reasonable and meritorious basis existed to proceed against Fuscoe, demonstrates that Plaintiff was not genuinely ignorant of facts giving rise to a cause of action against Fuscoe when the original complaint was filed. Fuscoe argues that the second Doe amendment therefore does not relate back to the filing of the original complaint and that Plaintiff’s claims are time-barred.

Section 411.35 requires counsel to file a certificate representing, after consultation with a licensed professional in the same discipline, that there is reasonable and meritorious cause to proceed. The consulted professional must opine that the named defendant was negligent in performing the applicable services. Section 411.35 is a substantive gatekeeping mechanism, but meeting it is analytically distinct from the section 474 inquiry: section 411.35 asks whether counsel has professionally vetted a claim; section 474 asks what specific liability-producing facts counsel actually knew when the original complaint was filed. “Although the statute refers literally only to ignorance of the name of a defendant, it is well established that amendment is permitted, even though the plaintiff knew a defendant’s name, if plaintiff was ignorant of the facts giving rise to a cause of action against that defendant.” (*Parker v. Robert E. McKee, Inc.* (1992) 3 Cal.App.4th 512, 516.)

The March 2025 Certificate’s generalized identification of Fuscoe as the engineer of the project does not establish, as a matter of law, that counsel knew in March 2025 the granular post-substantial-completion facts pleaded in the second Doe Amendment that “Fuscoe performed a final inspection of the area where Plaintiff later fell prior to the incident” and “failed to identify and advise the general contractor that the grading and storm drain installation did not conform to the approved design plans, including the

absence of a required checkered plate at the curb opening.” (RJN, Exh. E.) Plaintiff represents that these specific facts first surfaced at the March 11, 2026, PMK deposition, and that the March 2025 Certificate was general and collective as to several Doe defendants and identified no Fuscoe-specific negligent act or omission. The section 474 inquiry turns on “what facts the plaintiff actually knew at the time the original complaint was filed,” not what could have been discovered through further investigation, and prior naming and dismissal does not preclude later re-adding a defendant as a Doe based on newly-discovered facts supporting liability. (*Gen. Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 588)

Moreover, Fuscoe’s reply argument that *Parker* is limited to different legal capacities and does not reach different professional services under the same engagement does not support a different result. *Parker* holds that “amendment is permitted, even though the plaintiff knew a defendant’s name, if plaintiff was ignorant of the facts giving rise to a cause of action against that defendant,” and that a previously unknown fact about the defendant’s role “provides a proper new factual basis for a cause of action.” (See *Parker, supra*, (1992) 3 Cal.App.4th 512, 516.) The operative question is not the label affixed to the defendant’s relationship but whether newly discovered facts establish a distinct liability-producing connection to the injury. A design-side engagement does not, as a matter of law, put a plaintiff on notice that the same engineer also conducted a post-substantial-completion site walk, certified drainage after construction, signed as-built plans, and failed to identify nonconforming conditions. *Parker* itself permitted the plaintiff to proceed even where the defendant had been named and dismissed. (*Id.* at 518.)

The sham-pleading doctrine does not change the result; the two certificates of merit reflect different factual bases Plaintiff contends were surfaced at different times, not contradictory pleadings, and whether Plaintiff’s explanation is credible is a factual question not resolvable on demurrer. Demurrer is overruled as it cannot be determined on the face of the pleading or any judicially noticeable facts that Plaintiff’s claims are barred as a matter of law.

Motion to Strike - Pursuant to § 436(a), the court may “strike out any irrelevant, false, or improper matter inserted in any pleading.” When ruling on a motion to strike, the allegations of the pleading are assumed to be true and read in their context. (*Clauson v. Sup. Ct.* (1998) 67 Cal.App.4th 1253, 1255.) A pleading is to be liberally construed. (*CLD Construction v. City of Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

The motion to strike advances the same statute-of-limitations and § 474 genuine ignorance theory as the demurrer based on the same judicially-noticed materials. Indeed Fuscoe’s reply expressly disclaims any weighing of competing evidence, stating: Fuscoe does not ask the Court to judicially notice the truth of any disputed factual assertion or determine Plaintiff’s subjective knowledge by weighing competing evidence.

This disclaimer is fatal to the motion. A motion to strike a Doe amendment on statute-of-limitations grounds is not a purely pleading-based challenge. Under *Barrows v. Am. Motors Corp.* (1983) 144 Cal.App.3d 1 and *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, the moving party must present evidence, such as declarations,

discovery responses, deposition testimony, establishing that the plaintiff knew the defendant's liability-producing role at the time the original complaint was filed and unreasonably delayed filing the Doe amendment, resulting in prejudice. Fuscoe develops neither. Motion to strike is denied without prejudice. The factual questions at the heart of Fuscoe's section 474 theory such as counsel's subjective knowledge in March 2025, the credibility of Plaintiff's explanation, and prejudice cannot be resolved on the face of the pleading and judicially-noticed filings alone; they require a developed evidentiary record.